

Court No. - 38

Case :- WRIT - C No. - 8651 of 2019

Petitioner :- Nitin Agrawal

Respondent :- Pashimanchal Vidyut Vitran Nigam Ltd And 3 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Abhinava Upadhya, J.

Hon'ble Jayant Banerji, J.

By means of this writ petition, the petitioner has come to this Court challenging the order of final assessment dated 23.2.2019.

The allegation of the petitioner is that an alleged inspection was made at the premises of the petitioner on 11.1.2019. Thereafter, an FIR was lodged on 13.1.2019 on the ground of theft of electricity. However, in the assessment order, the petitioner has been assessed on account of unauthorized use of electricity. The assessment order is dated 23.2.2019.

Learned counsel for the petitioner submits that according to Clause 6.8 of the Electricity Supply Code, seven days notice is necessary to be given which was not done. Further, it is submitted that prior to passing of the order of assessment, a provisional assessment has to be made for which objections are invited and the date is fixed for personal hearing which was also not done and straightway, the final assessment order has been passed.

Sri Chandan Agarwal, learned counsel for the Corporation submits that the provisional assessment order was given to the petitioner by hand which the petitioner straightway denied and submits that no provisional assessment was ever made.

We have considered the submissions of the learned counsel for the petitioner and the learned counsel appearing for the Corporation.

There is no proof with regard to service of provisional assessment which is being stated upon the instructions by the learned counsel for the Corporation that the same was handed over to the petitioner personally. Such handing over of the order of assessment cannot be taken cognizance of. Therefore, it appears that the final assessment has been made without any provisional assessment which cannot be sustained in the eyes of law.

The provisional assessment order has been handed over to the

learned counsel for the petitioner today in Court.

The writ petition is disposed of with a direction that in case the petitioner files an objection to the aforesaid provisional assessment, the same will be considered and decided by the Executive Engineer within one month in accordance with law.

For a period of one month, no coercive action shall be taken against the petitioner. It is further provided that the claim of the petitioner for temporary electricity connection be also considered within the same period by the Executive Engineer.

Order Date :- 15.3.2019

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(Jayant Banerji, J) (Abhinava Upadhya, J)